

25SMCV05800 25SMCV05800

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a motion for leave to amend. Plaintiff seeks to add a cause of action under LA Municipal Code section 47.12. Defendant opposes, saying that the amendment would be futile, at least as to the broker defendants. LAMC 47.12 is a local ordinance similar to the state rent gouging statute. The difference, according to plaintiff, is that state law applies only to the property owner, whereas the ordinance applies to anyone who aids the owner. And the ordinance has an express private right of action.

The fact is that this is better dealt with on demurrer than at the leave to amend stage. Accordingly, the motion is GRANTED, and defendant will have 30 days to answer or otherwise respond. This is without prejudice to a demurrer.